

Kerala Fishermen's Welfare Fund Act, 1985

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State of Kerala - Act

Kerala Fishermen's Welfare Fund Act, 1985

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Kerala Fishermen's Welfare Fund Act, 1985

Act 30 of 1985

Published on 1 January 1985

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Kerala Fishermen's Welfare Fund Act, 1985

(Kerala Act

No. 30 of 1985

)

Last Updated 15th January, 2020

An Act to provide for the constitution of a welfare fund for promoting the welfare of fishermen in the State of Kerala and for matters incidental thereto.

Preamble. - Whereas it is expedient to provide for the constitution of a welfare fund for promotion of the Welfare of fishermen in the State of Kerala and for certain other matters incidental thereto ;

Be it enacted in the Thirty-sixth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Kerala Fishermen's Welfare Fund Act, 1985.

(2)

It extends to the whole of the State of Kerala

(3)

It shall come into force on such date as the Government may, by notification in the Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires

(a)

["allied worker" means any person who is engaged mainly in fishery related activities for his livelihood and who does not come under the definition of the term fisherman in clause (e) of section 2 of the Kerala Fisherman's Welfare Societies Act, 1980 (7 of 1981) and includes beach workers, small scale fish distributors, fish curers, peeling workers and small scale processing plant workers, who are not members or not eligible to get membership, in any other Statutory Welfare Scheme,;]

[New clause (a) is inserted before by Act 17 of 1999.]

(aa)

["Board" means the Kerala Fishermen's Welfare Fund Board constituted under section 7 ;]

[Existing clause (a) relettered as (aa) by Act 17 of 1999.]

(b)

["beach worker" means a person who is employed in fishing harbours or fish landing centres or fish landing sites to carry out activities such as,-

[New clause (b) is inserted before (bb) by Act 17 of 1999.]

(i)

unloading of fish from fishing crafts to fish baskets;

(ii)

transportation of fish baskets to auction site or icing site;

(iii)

transportation of trash fish or small fish to curing site ;

(iv)

sorting of fish at the landing site, unloading and crushing of ice, packing fish with ice in boxes and loading of packed boxes into vehicles used for transportation,

(v)

loading of fish directly from boats to lorries, sale of ice in the fishing harbours or fish landing centres;

(vi)

cleaning auction hall, fishing crafts and supplying water for fishing boats; and

(vii)

mending and repair of fishing nets::]

(bb)

["contribution" means the sum of money payable to the fund under section 4;]

[Existing clause (b) relettered as (bb) and by Act 17 of 1999.]

(c)

"Director of Fisheries" means the Director of Fisheries for the State of Kerala ;

(d)

["dealer" means any person who carries on, within the State of Kerala the business of buying or selling or processing fish or exporting fish (in raw or in processed form) or fish products and includes,-

[Substituted by Act 17 of 1999.]

(i)

a commission agent, a broker or any other mercantile agent; by whatever name called; and

(ii)

a non-resident dealer or an agent of a non-resident dealer or a local branch of a firm or company or association situated outside the State of Kerala;]

(e)

["fish means fish of all varieties including prawn, lobster, shellfish, clam, squids or any other aquatic organism exploited commercially for edible purposes or for manure;]

[Substituted by Act 17 of 1999.]

(ea)

["fish curer" means a worker who is engaged in the activities connected with drying, salted dry curing and salted wet curing ;

[Inserted by Act 17 of 1999.]

(eb)

"fish products" means fish in raw or in processed form;"]

(f)

"Fisheries Officer" means the Fisheries Officer appointed under clause (d) of section 2 of the Kerala Fishermen Welfare Societies Act, 1980 (7 of 1981) ;

(g)

"fisherman" means a fisherman as defined in clause (e) of section 2 of the Kerala Fishermen Welfare Societies Act, 1980 (7 of 1981) ;

(h)

"fishing vessel" means a ship or boat, whether or not fitted with mechanical means of propulsion, which is engaged in fishing for profit and includes,-

(i)

a catamaran, and

(ii)

a country craft, known by the name "vanchi" or "vallom" or by any other local variations thereof ;

(i)

"fund" means the Kerala Fishermen's Welfare fund established under section 3 and the scheme ;

(j)

"member" means a member of the fund ;

(ja)

["peeling worker" means a worker who is engaged in peeling prawn, lobster, clam, cleaning squids and cuttle fishes in huts, peeling sheds and fish processing plants;

[Inserted by Act 17 of 1999.]

(jb)

"processing' means any means of preservation of fish or fish products effected with or without physical or chemical changes by mechanical means or otherwise intended to facilitate increase in the shelf life of fish or fish products or to avoid loss during transit or value addition.

(jc)

"processing worker" means a worker who is engaged in cleaning, grading processing and packing of fish or fish products;

(jd)

"sale proceeds" means the amount realised or is likely to be realised by sale of fish or fish products;]

(k)

["Scheme" means the Kerala Fishermen's Welfare Fund Schemes or the allied workers' Welfare Scheme, framed under this Act,]

[Substituted by Act 17 of 1999.]

(ka)

["Small scale distributors" means, those persons engaged in the distribution of fish from fish landing centres or fish harbours or fish curing yards or markets through retail outlets or by house delivery and includes :-

[Inserted by Act 17 of 1999.]

(i)

auto carrier distributors ;

(ii)

cycle load vendors ;

(iii)

drivers and cleaners engaged in fish transporting on a permanent basis ;

(iv)

head load vendors, including vendors, who self fish in temporary camps ;

(v)

mini lorry distributors; and

(vi)

moped load distributors;]

(l)

"schedule" means the schedule to this Act.

3.

Fishermen's Welfare Fund Scheme.

(1)

The Government may, by notification in the Gazette, frame a scheme to be called the Kerala Fishermen's Welfare Fund scheme for the establishment of the fund under this Act by name "Kerala Fishermen's Welfare Fund" for the welfare of fishermen and there shall be established, as soon as may be after the framing of the scheme, the fund in accordance with the provision of this Act and scheme.

(1A)

[Notwithstanding anything contained in sub-section (1), the Government may by notification in the Gazette, frame a scheme, exclusively for allied workers, to be called "the Allied workers Welfare Scheme" under the said Fund and the provisions of sections 5, 16, 17, 18, 19, 21 and the schedule to this Act, shall apply, mutatis mutandis in respect of the said scheme.]

[Inserted by Act 17 of 1999.]

(2)

There shall be credited to the fund,-

(a)

the contribution specified in section 4 ;

(b)

fee levied under the scheme ;

(c)

damages realised under section 21 ;

(d)

grants or loans or advances made by the Government of India or the State Government;

(e)

any voluntary donations ;

(f)

any penalty levied under the provisions of the Kerala Marine Fishing Regulation Act, 1980 (10 of 1981

) ;

(g)

any amount raised by the Board from other sources to augment the resources of the Board.

(3)

The fund shall vest in and be administered by the Board.

(4)

The fund may be utilised for all or any of the following purposes, namely:

(a)

to provide for distress relief to fishermen in times of natural calamities ;

(b)

for payment of financial assistance to fishermen who suffer permanent or temporary disablement ;

(c)

for payment of loans or grants to fishermen to meet the expenses for the marriage of children, or expenses in connection with disease or death of dependants, or any unexpected expenditure or the day of day expenditure during lean months;

(d)

to provide for the fishermen and the members of their families,-

(i)

education vocational training and part time employment;

(ii)

social education centres including reading rooms and libraries ;

(iii)

sports, games and medical facilities ;

(iv)

nutritious food for children ; and

(v)

employment opportunities to the handicapped;

(e)

for payment of financial assistance to fishermen who suffer loss of house or fishing implements or any other damage due to natural calamities or other unexpected causes ;

(f)

to provide old age assistance to fishermen;

(g)

for the implementation of any other purpose specified in the scheme

(5)

Every fisherman who is a member of a fishermen's Welfare society constituted under section 4 of the Kerala Fishermen Welfare Societies Act 1980 (7 of 1981), shall be a member of the fund.

[and every allied worker shall become a member of the Fund, within such time as may be specified by the Government, in that behalf, for the purposes of the Allied Workers Welfare Scheme.]

[Inserted by Act 17 of 1999.]

.

(6)

Subject to the provisions of this Act, the scheme framed under sub-section (1) may provide for all or any of the matters specified in sub-section (4) and in the schedule.

4.

Contribution to the Fund.

- [(1) Every fisherman shall contribute to the Fund every year at such rate, as may be fixed by the Government, from time to time on the recommendation of the Board.]

[Substituted by Act 17 of 1999.]

(1A)

[Every allied worker shall contribute to the Fund, every month, at such rate as may be fixed by the Government from time to time, on the recommendation of the Board.]

[Inserted by Act 17 of 1999.]

(2)

[A dealer shall contribute to the Fund, every year, one per cent of his sale proceeds in the year

(3)

The owner of a fishing vessel of any category, shall contribute to the Fund every month an amount, at such rate, as may be fixed by the Government from time to time, on the recommendation of the Board to that category of fishing vessel.

(4)

The owner of a stake-net or china-net shall contribute to the Fund, at such rate, as may be fixed by the Government, from time to time, on the recommendation of the Board, for nine months every year.

(5)

The owner of a prawn filtration area or a prawn culture farm or a fish farm shall contribute to the fund every year, at such rate per hectare, as may be fixed by the Government, from time to time, on the recommendation of the Board.

Explanation. - For the purposes of this sub-section "prawn filtration area" means any water logged area, where prawn filtration is carried on.

"Prawn Culture Farm" means a farm where prawn, including scampi, are cultured.]

(5A)

[In calculating the extent of the area, half hectare and above shall be taken as one hectare and areas below half hectare shall be ignored.

(5B)

The owners of fish markets or lessees or licensees or any person claiming, any right or interest, through such owners, or the owners of the ice plants supplying ice, mainly for the processing of fish and the vehicles engaged, mainly for the transportation of fish, shall contribute to the fund every year, at such rate, as may be fixed the Government, from time to time, on the recommendation of the Board.]

[Inserted by Act 17 of 1999.]

(6)

A person who employs a fisherman in a fishing vessel shall be liable to pay under sub-section (7) the contribution payable by that fisherman under sub-section (1) after deducting that amount from the wages or other remuneration due to such fisherman.

(7)

The contributions shall be paid to the fisheries Officer or to any officer of the Board authorised by the Board in this behalf.

(8)

The amount of contribution shall be rounded off to the nearest rupee and, where such amount contains part of a rupee consisting of paise, then, if such part is fifty paise or more, it shall be increased to one rupee and if such part is less than fifty paise it shall be ignored.

5.

Amount to be accounted to the credit of each member.

- Each member shall be entitled to such amount in the fund as may be fixed in accordance with the formula specified in the scheme and entered in the accounts of the fund to his credit.

6.

Modification of Scheme.

- The Government may, by notification in the Gazette, add to, amend or vary the scheme.

7.

Constitution of Board.

(1)

The Government may, by notification in the Gazette, constitute with effect from such date as may be specified therein, a Board to be called the Kerala Fishermen's Welfare Fund Board for the administration of the fund and to supervise and to carry out the activities financed from the fund.

(2)

The Board shall be a body corporate by the name aforesaid, having perpetual succession and a common seal and shall by the said name sue and be sued.

(3)

The Board shall consist of the following members, namely, -

(a)

Secretary to Government in charge of fisheries ;

(b)

the Director of Fisheries ;

(c)

the Chairman and Managing Director of the Kerala State Co-operative Federation for Fisheries Development ;

(d)

the Law Secretary or an officer of Law Department nominated by him;

(e)

a representative of the Finance Department to be nominated by the Government; and

(f)

[five representatives of the fishermen to be nominated by the Government, of whom two shall be form the allied workers.]

[Substituted by Act 17 of 1999.]

(4)

The Government shall nominate one of the members of the Board as its Chairman.

(5)

The Board shall administer the fund in such manner as may be specified in the scheme.

(6)

The Board may, with the previous approval of the Government, delegate to the Director of Fisheries [*****]

[the words 'or to the Managing Director of the Kerala State Co-operative Federation for Fisheries Development' shall be omitted by act 15 of 1999.]

or to any officer of the Government or of the Board, such of its powers and functions under this Act or the scheme as it may consider necessary for the efficient administration of the fund, subject to such restrictions and conditions, if any, as it may specify.

8.

Power of the Board to borrow.

- The Board may, from time to time, with the previous approval of the Government and subject to such terms and conditions as may be specified by the Government borrow money for the purposes of the scheme.

9.

Term of office of non-official members.

- [(1) A member nominated under clause (f) of sub section (3) of section 7 shall, from the date of his nomination, hold office during the pleasure of the Government.

Provided that the term of office of a member so nominated shall not in any case exceed five years.]

[Substituted by Act 15 of 1987.]

(2)

Any nominated member may resign his membership by giving notice in writing to the Government, but shall continue in office until his resignation is accepted by the Government.

10.

Removal of non-official members.

(1)

The Government may by notification in the Gazette, remove any non-official member of the Board from office,-

(a)

if he has, without the permission of the Board, been absent from the meetings of the Board for any period exceeding three consecutive months or if within the said period less than three meetings have been held, he absents himself from three consecutive meetings:

Provided, however, that such absence may be condoned by the Board before the publication of the notification in the official Gazette;

(b)

if he, in the opinion of the Government, is unsuitable or has become incapable of acting as a member or has so abused his opinion as a member as to render his continuance as such member detrimental to the public interest:

Provided that before removing a member under this sub-section, he shall be given a reasonable opportunity to show cause why he should not be removed.

(2)

A non-official member of the Board removed under clause (a) of sub-section (1) shall be disqualified for nomination as a member of the Board for a period of three years from the date of his removal unless otherwise ordered by the Government.

(3)

A non-official member of the Board removed under clause (b) of sub-section (1) shall not be eligible for renomination until he is declared by an order of the Government to be no longer ineligible.

11.

Appointment of staff.

(1)

The Board may, with the previous approval of the Government, appoint such staff as it may consider necessary.

(2)

Subject to the provisions of sub-section (3), the method of recruitment, salary and allowances and other conditions of service of the staff appointed by the Board shall be such as may be specified by the Board with the previous approval of the Government.

(3)

In the case of posts in the service under the Board to which appointment is made by direct recruitment,-

(a)

fifteen per cent shall be reserved for appointment from candidates belonging to families of fishermen;

(b)

ten per cent shall be reserved for appointment from candidates belonging to scheduled castes and scheduled tribes; and

(c)

twenty-five per cent shall be reserved for appointment from candidate belonging to other backward classes.

Explanation. - For the purposes of this sub-section, the expressions, "scheduled caste", "scheduled tribes" and "other backward classes" shall have the meanings respectively assigned to them in the Kerala State and Subordinate Service Rules, 1958.

12.

Determination of contribution.

(1)

The Fisheries Officer or any officer of the Board not below the rank of a Sub Inspector of Fisheries authorised by the Board in this behalf may, after making such inquiry as may be necessary and after giving every person liable to pay contribution under section 4 an opportunity to be heard, by order, determine the amount due from such person under that section.

(2)

The officer conducting the inquiry under sub-section (1) shall, for the purposes of such inquiry, have the same powers as the vested in a civil court, while trying a suit, under the Code of Civil Procedure, 1908 (Central Act 5 of 1908), in respect of the following matters, namely:-

(a)

enforcing the attendance of any person or examining him on oath;

(b)

requiring the discovery and production of documents ;

(c)

receiving evidence on affidavit;

(d)

issuing commissions for the examination of witnesses

(3)

Any inquiry under this section shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 and for the purpose of section 196 of the Indian Penal Code, 1860 (Central Act 45 of 1860).

(4)

Any person aggrieved by an order under sub-section (1) may prefer an appeal to the Director of Fisheries within sixty days from the date of receipt of the order and the Director of Fisheries may, after making such inquiry, pass such orders thereon as he thinks fit.

(5)

The Government may, either suo-motu or on application of the aggrieved person, call for the record of any proceeding taken by the Director of Fisheries under sub-section (4) and make such enquiry and pass such orders, as they deem fit: Provided that an application for revision under this Sub-section shall be made within thirty days from the date on which

the order was communicated to the applicant:

Provided further that no order shall be passed under this sub-section without giving the person who may be affected thereby an opportunity to be heard.

13.

Provisional assessment and collection of advance contribution.

(1)

Every person liable to pay contribution under section 4 shall, pending determination under section 12 of the amount due from him, pay every month by way of advance contribution an amount equivalent to one-twelfth of the amount payable annually by him according to the latest determination under the said section :

[* * *]

[Proviso omitted by act 15 of 1999.]

(2)

The advance contribution for a month shall become payable on or before the 5th day of the succeeding month.

(3)

Where the advance contribution is not paid on or before the due date, the Fisheries Officer or any officer of the Board authorised by it in this behalf, shall issue a notice to the defaulter showing the amount of arrears, and if the amount is not paid with fifteen days of the receipt of such notice, it may be recovered in the same manner as arrears of public revenue due on land under the Revenue Recovery Act for the time being in force.

(4)

The amount paid under this section for an year shall be adjusted against the amount determined under section 12 for that year.

14.

Exemption.

- Government may, by notification in the Gazette, exempt any dealer, whose annual turnover from fish does not exceed Rs.24,000 per annum, from all or any of the provisions of this Act, subject to such condition as may be specified in the notification.

15.

Power to obtain copies of records etc., maintained by a Fishermen's Welfare Society.

(1)

Any officer of the Board not below the rank of a Fisheries Development Officer authorised by it in that behalf shall have power to peruse the books or registers or other records maintained by a Fishermen's Welfare Society constituted under the Kerala Fishermen Welfare Societies Act, 1980 (7 of 1981) or to requisition the supply of a copy of any such book or register or other record or of any entry therein as may be specified in such requisition.

(2)

The Fisheries Officer shall provide all facilities for the perusal of any book or register or other records by an officer under sub-section (1) and shall comply with any requisition made under that sub-section.

16.

Mode of recovery of money due under the Act.

- Any amount due from any person under the provisions of this Act or the scheme may be recovered in the same manner as an arrear of public revenue due on land under the Revenue Recovery Act for the time being in force.

17.

Protection against attachment.

(1)

The amount standing to the credit of any member in the fund shall not in any way be capable of being assigned or charged and shall not be liable to attachment under any decree or order of any court in respect of any debt or liability incurred by the member and no receiver appointed under the Insolvency Act, 1955 (

2 of 1956

), shall be entitled to, or have any claim on, any such amount.

(2)

Any amount standing to the credit of a member in the fund at the time of his death and payable to his nominee under the scheme shall, subject to any deduction authorised by the scheme, vest in the nominee and shall be free from any debt

or other liability incurred by the deceased or the nominee before the death of the member.

18.

Priority of payment of contributions over other debt.

- Where any person liable to pay contribution under section 4 is adjudicated insolvent or, in case where such person is a company, an order for winding up is made, the amount due from such person under the scheme shall, where the liability therefor has accrued before the order of adjudication or winding up is made, be deemed to be included among the debts which under section 64 of the insolvency Act, 1955 (

2 of 1956

) or under section 530 of the Companies Act, 1956 (Central Act 1 of 1956) are to be paid in priority to all other debts in the distribution of the property of the insolvent or the assets of the company being wound up, as the case may be.

19.

Penalty.

(1)

Whoever for the purpose of avoiding any payment to be made by himself under this Act or under the scheme or for enabling any other person to avoid such payment knowingly makes or causes to be made any false statement or false representation shall be punishable with imprisonment for a term which may extend to three months or with fine which may extend to one thousand rupees or with both.

(2)

Whoever contravenes or makes default in complying with any of the provisions of this Act or of the scheme shall, if no other penalty is elsewhere provided by or under this Act for such contravention or non compliance, be punishable with imprisonment for a term which may extend to three months or with fine which may extend to one thousand rupees, or with both.

(3)

No court shall take cognisance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made with the previous sanction of the Board, by the Director of Fisheries or by the Managing Director of the Kerala State Co-operative Federation for Fisheries Development or by such officer of the Board or Department of Fisheries not below the rank of Assistant Director of Fisheries, as may be specified in this behalf by the Board.

20.

Offences by Companies.

(1)

If the person committing an offence under this Act is a company, every officer of the company who is in default as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that in any proceeding against an officer of the company in respect of an offence under this Act it appears to the court hearing the case that the offence is not attributable to the negligence, default, breach of duty, misfeasance or breach of trust committed by the officer, but that he has acted honestly and reasonably and that having regard to all the circumstances of the case, including those connected with his appointment, he ought fairly to be excused, the court may relieve him either wholly or partly, from his liability on such terms as it may think fit.

(2)

Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any wilful negligence, default, breach of duty, misfeasance or breach of trust on the part of any officer of the company, such officer of the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purpose of this section,-

(a)

"company" means any body corporate and includes a firm, a co-operative society or other association of individuals;

(b)

"director" in relation to a firm, means a partner in the firm ;

(c)

"officer of the company" means the Managing Director, Director, Managing Agent, Secretary, Treasurer or Manager of the company and includes the office-bearers of a firm co-operative society or other association of individuals; and

(d)

"officer of the company who is in default" means any officer of the company who is knowingly guilty of non-compliance, failure, or contravention of the provisions of this Act or the scheme, or who knowingly and wilfully authorises or permits such non-compliance, failure or contravention.

21.

Power to recover damages.

- Where any person makes default in the payment of any contribution, the Board may recover from him damages not exceeding twenty-five per cent of the amount of arrear as they may think fit to impose.

22.

Protection of acts done in good faith.

- No suit or other legal proceeding shall lie against any member of the Board or any other person in respect of anything which is in good faith done or intended to be done under this Act or under the scheme.

23.

Direction by Government.

(1)

The Government may, after consultation with the Board, give to the Board general directions to be followed by the Board.

(2)

In the exercise of the powers and performance of its duties under this Act, the Board shall not depart from any general direction issued under sub-section (1) except with the previous permission of the Government.

24.

Power to order inquiry.

(1)

The Government may, at any time, appoint any person to inquire into the working of the Board and to submit a report to the Government.

(2)

The Board shall give the person so appointed all facilities for the proper conduct of the inquiry and furnish to him such documents, accounts or information in the possession of the Board as he may require.

25.

Power to supersede the Board.

(1)

If, on consideration of the report under section 24 or otherwise, the Government are of opinion that the Board has persistently made default in the performance of the duties imposed on it by or under the provisions of this Act or the scheme or has exceeded or abused its powers, the Government may, by notification in the Gazette, supersede the Board for such period not exceeding six months as may be specified in the notification:

Provided that before issuing a notification under this sub-section the Government shall give a reasonable opportunity to the Board to show cause why it should not be superseded and shall consider the explanations and objections, if any, of the Board.

(2)

Upon the publication of a notification under sub-section (1),-

(a)

all the members of the Board shall, as from the date of such publication, vacate their offices as such members;

(b)

all the powers and duties which may be exercised or performed by the Board shall, during the period of supersession be exercised or performed by such officer or officers as may be specified in the notification ;

(c)

all funds and other properties vested in the Board shall during the period of supersession, vest in the Government.

(3)

On the expiration of the period of supersession specified in the notification issued under sub-section (1), the

Government shall reconstitute the Board in the manner provided in section 7.

26.

Audit of accounts of the Board.

- The Government shall appoint auditors to the audit the accounts of the board.

27.

Annual report.

(1)

The annual report of the Board shall be prepared under the direction of the Board and after approval by the Board, a copy of the report shall be submitted to Government before the end of July every year.

(2)

The Government shall, as soon as the annual report is received, cause the same to be laid on the Table of the Legislative Assembly.

28.

Power to make rules.

- The Government may, by notification in the Gazette, make rules for the purpose of carrying into effect the provisions of this Act.

29.

Laying of rules and notifications before the Legislative Assembly.

- Every rule made under this Act and every notification issued under section 6 shall be laid, as soon as may be after it is made, before the Legislative Assembly, while it is in session for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, the Legislative Assembly makes any modification in the rule or notification or decides that the rule or notification should not be made or issued the rule or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or notification

Schedule

[See Section 3 (6)]

Matters For Which Provision May Be Made In The Scheme

1. The time and manner in which contribution to the fund shall be made by fisherman, dealer and owner of fishing vessels.
2. The manner in which the Board shall administer the fund, the manner in which accounts shall be kept, the investment of money belonging to the fund in accordance with any directions issued or conditions specified by the Government, the preparation of the budget, the audit of accounts and the submission of report to the Government.
3. The registers and records to be maintained with respect to fishermen, dealers and owners of fishing vessels.
4. The formula for fixing the amount to be credited to the account of each member of the fund.
5. The procedure for making grants or advances from the fund.
6. The procedure for and the conditions under which any deduction or forfeiture may be made and the maximum amount of such deduction or forfeiture may be made and maximum amount of such deduction or forfeiture.
7. The nomination of a person to receive the amount standing to the credit of a member after his death and the cancellation or variation of such nomination.
8. The form or design of any identity card, token or disc for the purpose of identifying any member of the fund, and for issue, custody and replacement thereof.
9. The fees to be levied for any of the purposes specified in this schedule
10. The purposes for which the fund may be utilised for the welfare of fishermen or their dependents.
11. The procedure for defraying the expenditure incurred in the administration of the fund.
12. Any other matter which is to be provided for in the scheme or which may be necessary or proper for the purpose of implementing the scheme.

[Substituted by Act 17 of 1999.]

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Translation